

Risk neutral

Fee rule	Meritorious-P shortfall	Nonliable-D burden	Liable-D excess burden	Gross outcome error	Total expenditures
American	0.207	0.157	0.018	0.256	0.182
Trial Fee-Shifting	0.192	0.147	0.014	0.256	0.137

Risk averse

Fee rule	Meritorious-P shortfall	Nonliable-D burden	Liable-D excess burden	Gross outcome error	Total expenditures
American	0.189	0.148	0.005	0.256	0.125
Trial Fee-Shifting	0.204	0.133	0.008	0.258	0.126